CIC AND SIC

CONSTITUTIONAL RIGHT, RTI IDENTITY → PROACTIVE DISCLOSURE AND THE → FOUR DISTINCT ROUTES: REQUEST → CIC AND SIC COMPOSITION → TENURE, SERVICE CONDITIONS AND → SECTION 18 INQUIRY AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

00 STAGE 00 — CONSTITUTIONAL RIGHT, RTI IDENTITY AND PUBLIC-AUTHORITY TEST

CONSTITUTIONAL RIGHT, RTI IDENTITY AND PUBLIC-AUTHORITY TEST · ARTICLE 19(1)(A) · CONSTITUTIONAL RIGHT TO KNOW. · RTI ACT, 2005 · STATUTORY ACCESS AND ENFORCEMENT MACHINERY. · INFORMATION EXISTING MATERIAL HELD BY OR CONTROLLED BY A · PUBLIC AUTHORITY · SUBSTANTIAL FINANCE.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 19(1)(a) → constitutional right to know.
- RTI ACT, 2005 → statutory access and enforcement machinery.

POWER / PROCEDURE

- INFORMATION existing material held by or controlled by a public authority, including accessible private-body material.
- PUBLIC AUTHORITY: Constitution

CHECK / LIMIT

- substantial finance.
- RTI gives covered records, not compelled creation of answers or opinions.

FEDERAL / RIGHTS IMPACT

- ARTICLE 19(1)(a) → constitutional right to know.
- RTI ACT, 2005 → statutory access and enforcement machinery.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RTI gives covered records, not compelled creation of answers or opinions.

01 STAGE 01 — PROACTIVE DISCLOSURE AND THE REQUEST ROUTE

PROACTIVE DISCLOSURE AND THE REQUEST ROUTE · SECTION 4 RECORD MANAGEMENT + ORGANISATION, POWERS, NORMS, BUDGETS · MAXIMUM PROACTIVE DISCLOSURE · MINIMUM RESORT TO APPLICATIONS. · SECTIONS 5-7 · REQUEST WITHOUT REASONS · ORDINARY 30 DAYS · LIFE/LIBERTY 48 HOURS.

SECTION 4 record management + organisation, powers, norms, budgets and decision reasons → maximum proactive disclosure → minimum resort to applications. → SECTIONS 5-7 → PIO/APIO → request without reasons → ordinary 30 days → life/liberty 48 hours.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 4 record management + organisation, powers, norms, budgets and decision reasons
- maximum proactive disclosure → minimum resort to applications.

POWER / PROCEDURE

- SECTIONS 5-7
- PIO/APIO → request without reasons → ordinary 30 days

CHECK / LIMIT

- life/liberty 48 hours.
- Transfer under section 6(3): as soon as practicable, not later than five days.

FEDERAL / RIGHTS IMPACT

- TRAP additional clocks apply to APIO and third-party routes.
- SECTION 4 record management + organisation, powers, norms, budgets and decision reasons

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP additional clocks apply to APIO and third-party routes.

02 STAGE 02 — FOUR DISTINCT ROUTES: REQUEST, COMPLAINT AND TWO APPEALS

FOUR DISTINCT ROUTES · REQUEST, COMPLAINT AND TWO APPEALS · PIO DECISION. · FIRST APPEAL · SENIOR DEPARTMENTAL OFFICER. · SECOND APPEAL · CIC/SIC; PIO BEARS DENIAL BURDEN; DECISION BINDING UNDER SECTION · SECTION 18 COMPLAINT

REQUEST → PIO decision.

FIRST APPEAL → senior departmental officer. → SECOND APPEAL → CIC/SIC; PIO bears denial burden; decision binding under section 19(7). → SECTION 18 COMPLAINT → access-system failures and inquiry powers.

CONSTITUTIONAL BASIS / ARTICLE

- REQUEST → PIO decision.
- FIRST APPEAL → senior departmental officer.

POWER / PROCEDURE

- SECOND APPEAL → CIC/SIC; PIO bears denial burden; decision binding under section 19(7).
- SECTION 18 COMPLAINT → access-system failures and inquiry powers.

CHECK / LIMIT

- CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) complaint is not an automatic substitute for the appellate disclosure remedy.
- REQUEST → PIO decision.

FEDERAL / RIGHTS IMPACT

- FIRST APPEAL → senior departmental officer.
- SECOND APPEAL → CIC/SIC; PIO bears denial burden; decision binding under section 19(7).

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) complaint is not an automatic substitute for the appellate disclosure remedy.

03 STAGE 03 — CIC AND SIC COMPOSITION AND APPOINTMENT

CIC AND SIC COMPOSITION AND APPOINTMENT · CHIEF + UP TO TEN INFORMATION COMMISSIONERS. · PRESIDENT APPOINTS AFTER PM + LOK SABHA LOP + · STATE CHIEF + UP TO TEN STATE INFORMATION COMMISSIONERS. · GOVERNOR APPOINTS AFTER CM + ASSEMBLY LOP + NOMINATED · ELIGIBILITY EMINENCE ACROSS LISTED FIELDS; CONFLICT DISQUALIFICATIONS APPLY

CONSTITUTIONAL BASIS / ARTICLE

- CIC: Chief + up to ten Information Commissioners.
- President appoints after PM + Lok Sabha LoP + nominated Union Cabinet Minister committee.

POWER / PROCEDURE

- SIC: State Chief + up to ten State Information Commissioners.
- Governor appoints after CM + Assembly LoP + nominated State Cabinet Minister committee.

CHECK / LIMIT

- ELIGIBILITY eminence across listed fields; conflict disqualifications apply.
- CIC: Chief + up to ten Information Commissioners.

FEDERAL / RIGHTS IMPACT

- President appoints after PM + Lok Sabha LoP + nominated Union Cabinet Minister committee.
- SIC: State Chief + up to ten State Information Commissioners.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ELIGIBILITY eminence across listed fields; conflict disqualifications apply.

04 STAGE 04 — TENURE, SERVICE CONDITIONS AND REMOVAL AFTER 2019

TENURE, SERVICE CONDITIONS AND REMOVAL AFTER 2019 · 2019 AMENDMENT · ACT-FIXED TERM AND ELECTION-COMMISSION PAY LINKAGE REMOVED · CENTRAL GOVERNMENT PRESCRIBES TENURE, PAY AND SERVICE CONDITIONS. · 2019 SERVICE-CONDITION RULES · THREE-YEAR TERM; AGE CEILING REMAINS 65. · PROVED MISBEHAVIOUR/INCAPACITY · SUPREME COURT INQUIRY/REPORT; DIRECT STATUTORY GROUNDS REMAIN SEPARATE.

CONSTITUTIONAL BASIS / ARTICLE

- 2019 AMENDMENT
- Act-fixed term and Election-Commission pay linkage removed

POWER / PROCEDURE

- Central Government prescribes tenure, pay and service conditions.
- 2019 SERVICE-CONDITION RULES: three-year term; age ceiling remains 65.

CHECK / LIMIT

- CIC: President
- SIC: Governor.

FEDERAL / RIGHTS IMPACT

- Proved misbehaviour/incapacity — Supreme Court inquiry/report; direct statutory grounds remain separate.
- 2019 AMENDMENT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Proved misbehaviour/incapacity → Supreme Court inquiry/report; direct statutory grounds remain separate.

05 STAGE 05 — SECTION 18 INQUIRY AND EVIDENCE POWERS

SECTION 18 INQUIRY AND EVIDENCE POWERS · COMPLAINT TRIGGERS NO PIO · INABILITY TO APPLY · UNREASONABLE FEE · INCOMPLETE/FALSE/MISLEADING INFORMATION. · INQUIRY POWERS SUMMONS · PUBLIC RECORDS · COMMISSION MAY INSPECT COVERED RECORDS NOTWITHSTANDING ANOTHER OBJECTION.

COMPLAINT TRIGGERS no PIO → inability to apply → unreasonable fee → incomplete/false/misleading information. → INQUIRY POWERS summons

CONSTITUTIONAL BASIS / ARTICLE

- COMPLAINT TRIGGERS no PIO
- inability to apply

POWER / PROCEDURE

- unreasonable fee
- incomplete/false/misleading information.

CHECK / LIMIT

- INQUIRY POWERS summons
- public records

FEDERAL / RIGHTS IMPACT

- Commission may inspect covered records notwithstanding another objection.
- LIMIT evidence powers do not themselves supply the section 19 disclosure remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT evidence powers do not themselves supply the section 19 disclosure remedy.

06 STAGE 06 — APPEAL, COMPLIANCE, COMPENSATION AND PENALTY

APPEAL, COMPLIANCE, COMPENSATION AND PENALTY · SECTION 19 APPEAL BINDING DECISION + DISCLOSURE/COMPLIANCE DIRECTIONS + · SECTION 20 PERSONAL PIO PENALTY · RS 250 PER DAY, MAXIMUM RS 25,000, AFTER HEARING · DISCIPLINARY RECOMMENDATION REMAINS DISTINCT. · BOUNDARY BINDING DOES NOT EXCLUDE ARTICLE 226/32 JUDICIAL REVIEW.

SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.

SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and → Disciplinary recommendation remains distinct. → BOUNDARY binding does not exclude Article 226/32 judicial review.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.
- SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and statutory grounds.

POWER / PROCEDURE

- Disciplinary recommendation remains distinct.
- BOUNDARY binding does not exclude Article 226/32 judicial review.

CHECK / LIMIT

- SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.
- SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and statutory grounds.

FEDERAL / RIGHTS IMPACT

- Disciplinary recommendation remains distinct.
- BOUNDARY binding does not exclude Article 226/32 judicial review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: BOUNDARY binding does not exclude Article 226/32 judicial review.

07 STAGE 07 — EXEMPTIONS, OVERRIDE, SEVERABILITY AND THIRD-PARTY PROCESS

EXEMPTIONS, OVERRIDE, SEVERABILITY AND THIRD-PARTY PROCESS · SECTION 8(1) · ENUMERATED PROTECTED INTERESTS. · SECTION 8(2) · PUBLIC-INTEREST OVERRIDE OVER OFFICIAL SECRETS ACT AND SECTION 8(1) · SECTION 8(3) · TWENTY-YEAR RULE WITH SPECIFIED EXCEPTIONS. · SECTION 9

SECTION 8(1): enumerated protected interests. → SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms. → SECTION 8(3): twenty-year rule with specified exceptions. → SECTION 9: copyright limit. → SECTION 10: sever non-exempt material.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 8(1): enumerated protected interests.
- SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms.

POWER / PROCEDURE

- SECTION 8(3): twenty-year rule with specified exceptions.
- SECTION 9: copyright limit.

CHECK / LIMIT

- SECTION 10: sever non-exempt material.
- SECTION 11: consultation, not independent exemption or third-party veto.

FEDERAL / RIGHTS IMPACT

- SECTION 8(1): enumerated protected interests.
- SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SECTION 11: consultation, not independent exemption or third-party veto.

08 STAGE 08 — SECURITY ORGANISATIONS AND STATUTORY PRIORITY

SECURITY ORGANISATIONS AND STATUTORY PRIORITY · SECTION 24 · SECOND SCHEDULE INTELLIGENCE/SECURITY BODIES GENERALLY EXEMPT · CORRUPTION AND HUMAN-RIGHTS ALLEGATIONS REMAIN ROUTES; HR DISCLOSURE NEEDS · SECTION 22 · RTI ACT OVERRIDES INCONSISTENT SECRECY LAW. · TRAP SECURITY EXEMPTION IS NOT ABSOLUTE IMMUNITY FROM CORRUPTION

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 24
- Second Schedule intelligence/security bodies generally exempt.

POWER / PROCEDURE

- PROVISOS: corruption and human-rights allegations remain routes; HR disclosure needs CIC approval and uses special time.
- SECTION 22: RTI Act overrides inconsistent secrecy law.

CHECK / LIMIT

- TRAP security exemption is not absolute immunity from corruption or human-rights information.
- SECTION 24

FEDERAL / RIGHTS IMPACT

- Second Schedule intelligence/security bodies generally exempt.
- PROVISOS: corruption and human-rights allegations remain routes; HR disclosure needs CIC approval and uses special time.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP security exemption is not absolute immunity from corruption or human-rights information.

09 STAGE 09 — PERSONAL INFORMATION AFTER THE DPDP SUBSTITUTION

PERSONAL INFORMATION AFTER THE DPDP SUBSTITUTION · DPDP ACT SECTION 44(3), EFFECTIVE 13 NOVEMBER 2025 · SECTION 8(1)(J) · INFORMATION WHICH RELATES TO PERSONAL INFORMATION. · HISTORICAL CLAUSE-SPECIFIC TESTS ARE NO LONGER CURRENT TEXT. · SURVIVING ANALYSIS SECTION 8(2) · OTHER STATUTES · ARTICLE 19(1)(A) AND PRIVACY PROPORTIONALITY.

DPDP ACT section 44(3), effective 13 November 2025 → section 8(1)(j): information which relates to personal information. → Historical clause-specific tests are no longer current text. → SURVIVING ANALYSIS section 8(2) → other statutes

CONSTITUTIONAL BASIS / ARTICLE

- DPDP ACT section 44(3), effective 13 November 2025
- section 8(1)(j): information which relates to personal information.

POWER / PROCEDURE

- Historical clause-specific tests are no longer current text.
- SURVIVING ANALYSIS section 8(2)

CHECK / LIMIT

- other statutes
- Article 19(1)(a) and privacy proportionality.

FEDERAL / RIGHTS IMPACT

- LIMIT do not invent a stay. Constitution Bench reference or final judgment.
- DPDP ACT section 44(3), effective 13 November 2025

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT do not invent a stay. Constitution Bench reference or final judgment.

10 STAGE 10 — CASE LAW AND PUBLIC-AUTHORITY BOUNDARIES

CASE LAW AND PUBLIC-AUTHORITY BOUNDARIES · STATE OF U.P. V. RAJ NARAIN (1975) · RIGHT TO KNOW PUBLIC ACTS. · S.P. GUPTA V. UNION OF INDIA (1981) · OPEN GOVERNMENT. · CBSE V. ADITYA BANDOPADHYAY (2011) · EXISTING RECORDS, NOT COMPELLED NEW OPINIONS. · CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) · CBSE v. Aditya Bandopadhyay (2011): existing records, not compelled new opinions. · RBI v. Jayantilal N. Mistry (2015): no blanket regulatory fiduciary shield.

CBSE v. Aditya Bandopadhyay (2011): existing records, not compelled new opinions.

RBI v. Jayantilal N. Mistry (2015): no blanket regulatory fiduciary shield. → STATE OF U.P. V. RAJ NARAIN (1975): right to know public acts. → S.P. GUPTA V. UNION OF INDIA (1981): open government.

CONSTITUTIONAL BASIS / ARTICLE

- CBSE v. Aditya Bandopadhyay (2011): existing records, not compelled new opinions.
- RBI v. Jayantilal N. Mistry (2015): no blanket regulatory fiduciary shield.
- STATE OF U.P. V. RAJ NARAIN (1975): right to know public acts.
- S.P. GUPTA V. UNION OF INDIA (1981): open government.

POWER / PROCEDURE

- CBSE v. Aditya Bandopadhyay (2011): existing records, not compelled new opinions.
- CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011): complaint route != disclosure appeal.

CHECK / LIMIT

- RBI v. Jayantilal N. Mistry (2015): no blanket regulatory fiduciary shield.
- SUBHASH CHANDRA AGARWAL (2019): CJI office is public authority, subject to exemptions/balancing.

FEDERAL / RIGHTS IMPACT

- ANJALI BHARDWAJ V. UNION OF INDIA (2019): timely transparent appointments.
- Political-party CIC ruling is not a final Supreme Court holding.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Political-party CIC ruling is not a final Supreme Court holding.

11 STAGE 11 — INDEPENDENCE, REFORM, PYQ AND QUALIFIED VERDICT

INDEPENDENCE, REFORM, PYQ AND QUALIFIED VERDICT · BINDING APPEAL · COMPLIANCE DIRECTIONS · PERSONAL PENALTY. · WEAK RECORDS · UNDERUSED PENALTIES · SERVICE-CONDITION DEPENDENCE. · FIXED TRANSPARENT APPOINTMENTS

STRENGTHS: binding appeal → compliance directions → personal penalty. → LIMITS: vacancies → weak records

CONSTITUTIONAL BASIS / ARTICLE

- STRENGTHS: binding appeal
- compliance directions
- personal penalty.
- LIMITS: vacancies

POWER / PROCEDURE

- weak records
- underused penalties
- service-condition dependence.
- REFORM: fixed transparent appointments

CHECK / LIMIT

- protected conditions
- digital interoperability proactive disclosure
- reasoned penalty practice.
- PYQ 2020: amendment and autonomy, 10 marks, 150 words.

FEDERAL / RIGHTS IMPACT

- VERDICT: legal teeth require independent, staffed and accessible commissions.

MECHANISM / VERDICT — VERDICT: legal teeth require independent, staffed and accessible commissions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: legal teeth require independent, staffed and accessible commissions.

E EXTRA — SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · INSTITUTIONAL DESIGN REFINEMENTS · (JANALYSIS) BINDING APPELLATE POWER AND EFFECTIVE ENFORCEMENT ARE DISTINCT · VACANCIES, WEAK · RECORDS AND NON-COMPLIANCE CAN DEFEAT A LEGALLY BINDING ORDER · (ANALYSIS) THE PUBLIC-AUTHORITY TEST SHOULD BE APPLIED THROUGH LEGAL · GOVERNMENTAL CONTROL AND SUBSTANTIAL-FINANCING EVIDENCE RATHER THAN LABELS ALONE. · (LIMIT) THE CIC POLITICAL-PARTY RULING IS INSTITUTIONALLY IMPORTANT BUT

OPTIONAL DOCTRINE / CASE

- institutional design refinements
- [ANALYSIS] Binding appellate power and effective enforcement are distinct: vacancies, weak
- records and non-compliance can defeat a legally binding order in practice.
- [ANALYSIS] The public-authority test should be applied through legal creation,

ADVANCED LIMIT

- governmental control and substantial-financing evidence rather than labels alone.
- [LIMIT] The CIC political-party ruling is institutionally important but is not a
- final Supreme Court holding declaring every political party a public authority.
- [LIMIT] Privacy analysis after the amended section 8(1)(j) must retain section 8(2).

COMPARATIVE NUANCE

- severability, purpose-specific statutes and constitutional proportionality without inventing a judicial result.
- Institutional design refinements - [ANALYSIS] Binding appellate power and effective enforcement are distinct:
- vacancies, weak records and non-compliance can defeat a legally binding order in practice.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels